



EUROPEAN COMMISSION
SERVICE FOR FOREIGN POLICY INSTRUMENTS

FPI.6 – Common Foreign and Security Policy (CFSP) Operations & Election Observation

European Commission

Call for tenders EC-FPI/2024/EA-OP/0023

Provision of Medical equipment for Civilian CSDP Missions, European Union Special Representatives and other CFSP-funded entities

Open procedure

TENDER SPECIFICATIONS

Part 1: Administrative specifications

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1. SCOPE AND DESCRIPTION OF THE PROCUREMENT

1.1. Contracting authority: who is the buyer?

This call for tenders is inter-institutional. The following EU institutions, as well as the following bodies and persons funded under the Common Foreign and Security Policy (CFSP), (hereafter the Participating entities) will participate as Contracting Authorities to the framework contract(s) resulting from this call for tenders.

Participating entities – Lot 1 – Medical emergency response equipment		
EC Contracting Authority (Lead LCA)	–	European Commission
CFSP Entities (Participating Contracting Authorities PCAs)	–	EUAM Iraq, EUAM RCA, EUAM Ukraine, EUBAM Libya, EUBAM Rafah, EUCAP Sahel Mali, EUSDI Gulf of Guinea, EUPM Moldova, EUM Armenia, EUCAP Somalia, EULEX Kosovo, EUPOL COPPS

Participating entities – Lot 2 – Medical clinic equipment		
EC Contracting Authority (Lead LCA)	–	European Commission
CFSP Entities (Participating Contracting Authorities PCAs)	–	EUAM Iraq, EUAM RCA, EUAM Ukraine, EUBAM Libya, EUBAM Rafah, EUCAP Sahel Mali, EUSDI Gulf of Guinea, EUPM Moldova, EUM Armenia, EUCAP Somalia, EULEX Kosovo, EUPOL COPPS

The list of *participating entities (PCAs)* may be extended to include any other institution, office, agency, body or person created on the basis of the [Treaties](#) or of secondary Union law, after the launch of this procedure.

The lead contracting authority is the European Commission, Service for Foreign Policy Instruments (FPI) The European Commission, acting as an agent for the PCAs for the purposes of this call for tenders and the resulting framework contracts, publishes the call for tenders, organises the evaluation, signs and manages the framework contracts (including any amendments thereto) on behalf of all PCAs.

Each of the *PCA* may avail itself of the resulting framework contract[s] autonomously by concluding specific contracts¹ with the contractor[s].

References to the contracting authority in these tender specifications and their annexes shall be understood, depending on the context, as referring to one of the following:

- the European Commission, acting in its capacity as lead contracting authority;
- all the *PCAs* in relation to their collective rights and obligations with the contractors, as one of the parties to the framework contract[s]
- any of the *PCAs*, acting in its own capacity, for matters related to the conclusion, execution, or termination of specific contracts with the contractor[s].

1.2. Subject: what is this call for tenders about?

The subject of this call for tenders is the provision of medical equipment for civilian CSDP Missions, European Union Special Representatives and other CFSP-funded entities.

1.3. Lots: is this call for tenders divided into lots?

This call for tenders is divided into two lots:

Lot number	Lot title
Lot 1	Medical emergency response equipment
Lot 2	Medical clinic equipment

Tenders may be submitted for any lot. Each lot will be assessed independently of any other lot. Tenders, which cover only part of one lot or are declared as being conditional on the award of any other lots, are not permitted.

¹ Including order forms as a simplified form of specific contract in case of supplies or supplies and services contracts.

1.4. Description: what do we want to buy through this call for tenders?

The purchases that are the subject of this call for tenders, including any minimum requirements, are described in detail below and in [Annex 6](#).

Variants (alternatives to the model solution described in the tender specifications) are not allowed for any lot. The contracting authority will disregard any variants described in a tender.

1.4.1. Background and objectives

The aim of the Service for Foreign Policy Instruments (FPI) is to put EU foreign policy into action, fast and flexibly, in a policy-driven and integrated approach and, thereby, to support achieving the objectives of the CFSP, as defined in Article 21 TEU.

Under the authority of the High Representative of the Union for Foreign Affairs and Security Policy in his capacity as Vice-President of the European Commission, the FPI acts as first responder to foreign policy needs and opportunities, such as in the field of peace and conflict prevention, democracy, and the rule of law.

Within FPI, Unit FPI.6 manages the budget of the CFSP, which is part of the Union budget. CFSP operations consist of civilian crisis management operations falling under the CSDP, European Union Special Representatives (EUSRs), Article 28 TEU Actions, Preparatory Measures and projects in non-proliferation and disarmament. While the European External Action Service (EEAS) is responsible for the design of the content of the operational mandates of these operations, FPI 6 ensures the day-to-day management of CFSP operations in its areas of competence (e.g. procurement, grants, budget management) and verifies that the operations respect the principles of sound financial management. It liaises closely with the civilian crisis management structures in the EEAS, which include experts in the field of this FWC (i.e.: medical equipment).

The CFSP budget amounts to approximately EUR 384.7 million (2024 yearly figure) covering crisis management operations through contribution agreements signed by the European Commission with CSDP Missions, EUSRs, Article 28 TEU Actions and, where necessary, Preparatory Measures. Each contribution agreement refers to a specific mandate of the CFSP entity in question. The Council of the EU, by means of a Council Decision (published in the Official Journal of the EU), establishes the specific mandate's content, scope, and conditions of a CFSP entity.

Crisis management operations may take place in risky or hostile environments. The spectrum of CFSP operations in terms of risk is broad. Some operations take place in countries, territories, or areas considered as reasonably safe, whereas others are established in hostile contexts. This also affects the conditions of shipment and import of assets and supplies into the respective countries and territories.

1.4.2. Detailed characteristics of the purchase

The above-mentioned CFSP entities are composed of around 3,000 women and men, sometimes working in difficult theatres of operation. They therefore require a range of equipment, including medical equipment, suited for these risky environments and for the needs of the implementation of the operations.

To optimize efficiency and effectiveness, these CFSP operations should acquire and use the same type of equipment, to ensure inter-operability between them, and making sure that such equipment is of the highest standard, both in terms of quality and of robustness, given the challenging environments in which these operations are conducted.

The EU has committed itself, as per the mandate given by the Council of the EU, to be able to set up a new crisis management operation composed of around 200 personnel within 30 days of its launch, with all the necessary equipment. Hence, it is imperative that the equipment to be provided can be widely available on the relevant market and not customised.

Therefore, this call for tenders is seeking a contractor for the following medical equipment categories:

- **Lot 1: Medical emergency response equipment:** The equipment for this lot focuses on the provision of medical equipment for emergency response and preparedness (such as individual first-aid kits [IFAKs], tourniquets, etc.).
- **Lot 2: Medical clinic equipment:** The equipment for this lot focuses on the provision of medical equipment for the set-up and functioning of a clinic within the PCAs, as well as training equipment for medical staff.

As a minimum requirement, all equipment must, where applicable, meet the standards set in the relevant EU legislation (such as Regulation (EU) 2017/745 on medical devices) and be marked CE as appropriate or, alternatively, meet the standard or certification level issued by the relevant authority (such as the US FDA, or similar) or competent notifying body.

In line with the above rapid deployment mandate, suppliers should, as a minimum requirement, be able to provide most of the equipment within 30 days of an order being placed, unless otherwise specified differently in the order form/specific contract and in agreement with the PCA. The 30-day delivery period excludes any possible delays due to import and customs procedures in the country of the PCA.

The required supplies including the minimum technical requirements are listed in **the Annex 6**.

As additional minimum requirement suppliers must also be able to provide the following:

Transport and shipping services:

The contractor shall take care of transporting the equipment to any place where PCAs are established. By signing the framework contract, the contractor commits itself to deliver the equipment (including packing, transport, customs clearance if applicable, and delivery to the PCA's location) within the required timeframe of 30 days, unless otherwise specified differently in the order form/specific contract. In case of difficulties to send the equipment, the contractor should inform the PCA when receiving the draft specific contract/order form, provide with a justification related to the delay and indicate the time delivery for the impacted items. The above-mentioned timeframe specifically excludes any administrative process linked to customs and import in the country of delivery.

The contractor must prepare all necessary documents and commit to export the items to countries and territories where the PCAs are deployed. The contractor shall be required to

work actively together with the PCAs to obtain any and every necessary permits and authorisations.

The contractor must propose transportation services (Delivery at Place (DAP) or Delivery Duty Paid (DDP) following Incoterms 2020) at market prices based on three (3) separate offers from different providers for freight services. Alternatively, the contractor might, in specific circumstances and providing duly justified arguments, indicate one specific provider for freight services. Given the fluctuation of prices in freight services between the moment of the signed order form and the actual delivery to the country or territory, the contractor can apply a maximum of 20% increase to the freight offer to cover this fluctuation. The PCA will select the most appropriate offer based on elements of urgency, distance, duration, and price. If none of the offers are deemed appropriate by the PCA, the PCA may organise the transport by itself. In such a case, delivery and acceptance will be done following Incoterms Free Carrier (FCA).

In exceptional cases, it may be required to deliver the equipment to the EEAS Headquarters in Brussels, for further transportation to the PCA concerned by the PCA own means.

As each order form/specific contract includes the accepted transport quotation for the entirety of the items, all the items in their total quantities are expected to be delivered in a single shipment within the agreed timeframe, at the maximum cost agreed by the PCA. In all circumstances, the contractor shall thus endeavour to send complete the orders to the PCA in a single shipment.

However, and for operational reasons, the PCA and the contractor can agree to split the shipment of a specific contract/order form into several partial shipments. This can, for example, occur when part of the ordered items is available for shipment and these items are urgently needed by the PCA, while the remainder of the items are less urgent and not yet available for shipment. In such circumstances, the contractor will be requested to propose a maximum ceiling for the total cost of transport for the whole and provide quotations from freight providers to define this maximum ceiling, which will need to be agreed by the PCA.

Notwithstanding the different scenarios detailed above, the price of the transportation will be reimbursed based on the invoice from the freight provider, without any additional fees. The contractor is obliged to present the transport provider invoice as a complementary document to the invoice of the related specific contract/order form.

The price of the transportation will not be considered for the evaluation of the tenders.

Warranty conditions with worldwide coverage:

In case that the delivered equipment fails to operate properly within the warranty period, the faulty equipment will be replaced at the contractor's expense, including any return shipping costs. This covers:

- Cases where the quality of the order does not comply with the reference model.
- The product cannot be used for its standard or foreseen use.

The PCA will react immediately towards the contractor upon discovery of the defect.

The warranty period should cover a minimum of 2 years (24 months) from the moment of acceptance by the PCA, unless otherwise indicated in the relevant technical specifications or if the manufacturer of the equipment provides a longer warranty. Given the wide geographic scope of the PCAs, the warranty should be effective at a minimum in the current countries and territories of operation.

Tenderers must accompany their tenders with the detailed warranty conditions, including the procedure for repairs and interventions falling under the warranty. In case that any particular items have a longer or generally more comprehensive warranty offered, notably by the manufacturer, this should also be indicated in the tender.

Maintenance and after-sales services, including, where necessary, relevant training or installations instructions:

All equipment, whenever applicable, must be accompanied by detailed installation and user manuals, in English and French as a minimum (being these the two working languages of the PCAs). For equipment requiring more detailed installation information, additional relevant audio-visual materials (including online) are also accepted.

As the supplies are to be delivered to a range of PCAs for the purposes of standardisation and interoperability across the PCAs, the suppliers must be able to provide, when and as required, the highest level of after-sales service and maintenance.

Planned maintenance: any indication of need for periodic maintenance necessary for the continuous good functioning of the equipment, to reduce the likelihood of fault to happen or to improve (or prevent decrease) of the performance of the device, should be included in the relevant documentation.

Corrective and unplanned maintenance: In case of repairs (outside of the warranty period and conditions), details are to be arranged directly between the PCA and the supplier without the involvement of the LCA.

Supplementary medical items:

The PCAs may also request the contractor to supply supplementary medical items from the official and public catalogue of medical equipment of the contractor. The supplementary equipment shall be a necessary and marginal addition to the essential fixed terms of the initial framework contract (FWC) and cannot modify elements connected with the initial technical specifications. Provided it is not substantial, the supplement can be requested at the level of a specific contract/order form. The examples of such supplements are:

- particular delivery schedules or locations,
- additional security needs,
- similar or accessory product(s) not included in the initial price list.

The catalogue can be on-line or paper-based, in English. It must contain a larger range of medical equipment / accessories differing from the list of items for the FWC and, with a full description, mentioning brand and characteristics of each item, including pictures and prices. These items are not identifiable when establishing the tender documents but shall be of a type similar and inherently complementary to those listed in Annex 6. The catalogue is the contractor's catalogue or of its subcontractor(s).

Any item ordered as supplementary equipment / accessory will be invoiced at the price of the official and public catalogue submitted by the contractor; at the date when the signed order form or specific contract is sent by the PCA.

Ordering procedure and catalogue:

The contractor should provide to the PCAs with an updated catalogue with the list of items mentioned in the FWC (Important! Not to be mistaken with the catalogue mentioned in the previous point concerning the “Supplementary medical items”).

If possible, the contractor should provide the LCA and PCA with an easily accessible online catalogue.

The catalogue potential updates, which might include End of Life items (EoL) and changes in minimum ordering quantity (MOQ), shall be agreed upon with the LCA before dissemination and publication to the PCAs.

Both the PCAs and the contractor, shall follow the below ordering procedure, which might be modified at the start of the FWC:

1. PCA submits a draft order form/specific contract via e-mail to the contractor with all the necessary information (list of items, incoterms, expected date of arrival to the PCA, etc.).
2. Within 5 working days, the contractor must confirm to the PCA its capacity to comply with the specific contract/order form and its conditions. Otherwise, the contractor must send an explanation of why it cannot accept the specific contract/order form and, in any case, provide an alternative solution. Within this timeframe, the contractor must provide information on the sourcing and delivery time for the different items listed in the specific contract/order form.
3. After confirmation by the contractor, the contractor must provide the freight quotation(s) in line with Section 1.4.2 of the Tender Specifications Part 1 – Administrative Specifications (“Transport and shipping services”).
4. Once the freight quotations are transmitted to the PCA, the PCA, within 5 working days, must acknowledge receipt of the freight quotation(s) and indicate, if applicable, which of the freight quotations is the preferred one.
5. The contractor, within 5 working days, will next send back to the contracting authority the specific contract/order form duly signed and dated with the relevant transport costs included in specific contract/order form.
6. The contracting authority countersigns, stamps and dates the specific contract/order form and sends it back to the contractor by e-mail.
7. From the date of countersignature, the contractor has a thirty (30) day timeframe for the delivery of the supplies to the destination in the country or territory of delivery, unless otherwise specified differently in the order form/specific contract in line with the tender specifications. The above-mentioned timeframe specifically excludes any administrative process linked to customs and import in the country of delivery as demonstrated by the contractor. The PCA must support, whenever needed, the import of the equipment to the country of delivery by obtaining the necessary customs exemption documents. In this regard, as specified above, the contractor shall be required to work actively together with the PCA to obtain any and every necessary permits and authorisations.

Any deadlines stated above can be exceeded, but exceeding of the deadlines must be duly justified.

1.4.3. Deliverables

Every week, the sole contractor (or leading contractor in the case of a joint tender) must provide the LCA with an update regarding the orders/specific contracts of the PCAs. The contractor should list and summarise the main information such as, but not limited to, the date of countersignature of the order form/specific contract, the delivery date to the PCA, the quantity of items to be delivered, the costs, the type of freight (airfreight, sea freight or land transport) and the type of incoterm. This reporting is not linked to a payment.

Every 6 months, the sole contractor (or leading contractor in the case of a joint tender) must inform the LCA about the cumulative expenditure incurred under the ongoing specific contracts. This information is required for the LCA's contract consumption monitoring. This reporting is not linked to a payment.

1.5. Place of performance: where will the contract be performed?

The supplies will be delivered to the location(s) indicated in Section 1.5 of these specifications. The supplies will be delivered to the locations where the PCAs have premises. Please note that some PCAs have premises in several locations, and these may be subject to change. The estimated distribution of deliveries among the different locations is as follows:

LOT 1 - Medical emergency response equipment		
Name	Locations	% of the estimated overall volume of deliveries
EUAM Ukraine	Ukraine	18%
EUBAM Libya	Tunisia and Libya	8%
EUBAM Rafah	Israel and the occupied Palestinian Territories	7%
EUCAP Sahel Mali	Mali, Mauritania, Chad and Burkina Faso	12%
EUAM Iraq	Iraq	8%
EUAM RCA	Central African Republic	8%
EUCAP Somalia	Somalia and Kenya	2%
EUM Armenia	Armenia	10%
EUPM Moldova	Moldova	1%
EUSDI Gulf of Guinea	Ivory Coast, Benin, Ghana, Togo, and Belgium	3%
EUPOL COPPS	Israel and the occupied Palestinian Territories	4%
EULEX Kosovo	Kosovo and The Netherlands	8%
OTHER	Other	11%

LOT 2 - Medical clinic equipment		
Name	Locations	% of the estimated overall volume of deliveries
EUAM Ukraine	Ukraine	5%
EUBAM Libya	Tunisia and Libya	13%
EUBAM Rafah	Israel and the occupied Palestinian Territories	4%
EUCAP Sahel Mali	Mali, Mauritania, Chad and Burkina Faso	17%
EUAM Iraq	Iraq	9%
EUAM RCA	Central African Republic	15%
EUCAP Somalia	Somalia and Kenya	3%
EUM Armenia	Armenia	10%
EUPM Moldova	Moldova	1%
EUSDI Gulf of Guinea	Ivory Coast, Benin, Ghana, Togo and Belgium	1%
EUPOL COPPS	Israel and the occupied Palestinian Territories	4%
EULEX Kosovo	Kosovo and The Netherlands	7%
OTHER	Other	11%

The above are estimates only and entail no commitment for the contracting authority.

1.6. Nature of the contract: how will the contract be implemented?

The procedure will result in the conclusion of the following contract types per lot:

Lot	Contract type
Lot 1	A single framework contract
Lot 2	A single framework contract

A FWC establishes a mechanism for future repetitive purchases by the contracting authority to be awarded in the form of specific contracts². The signature of a FWC does not impose an obligation on the contracting authority to conclude specific contracts with a framework contractor.

The single FWC will be concluded with one contractor. Specific contracts shall be awarded based on the terms laid down in the FWC, refined or, in duly justified circumstances, supplemented to reflect the particular circumstances of the specific contract. The details are set out in the draft contract.

² Any reference to specific contracts applies also to order forms (a simplified form of specific contract).

Tenderers need to take full account of the full set of procurement documents, including the provisions of the draft contract, as the latter will define and govern the contractual relationships to be established between the contracting authority and the successful tenderers.

Special attention is to be paid to the provisions specifying the rights and obligations of the contractor, particularly those on payments, performance of the contract, confidentiality, data protection, and checks and audits.

👉 Please be aware that if a tenderer to whom the contract is awarded (any of the group members in case of a joint tender) has established debt(s) owed to the Union, the European Atomic Energy Community or an executive agency when the latter implements the Union budget, such debt(s) may be offset, in line with Articles 101(1) and 102 of **Regulation (EU, Euratom) 2024/2509 of the European Parliament and of the Council of 23 September 2024 on the financial rules applicable to the general budget of the Union (Financial Regulation recast)**³ and the conditions set out in the draft contract, against any payment due under the contract. The contracting authority will verify the existence of overdue debts of the successful tenderers (any of the group members in case of a joint tender) and, if any such debt is found, will inform the tenderer (the group leader in case of a joint tender who will then have the obligation to inform all other group members before signing the contract) that the debt(s) may be offset against any payment under due the contract.

1.7. Volume and value of the contract: how much do we plan to buy?

An indicative estimate of the volumes to be ordered for each lot over the whole duration of the framework contracts is given in the financial model in **Annex 6**. These volumes are estimates only and there is no commitment as to the exact quantities to be ordered. The actual volumes will depend on the quantities, which the contracting authority will order through specific contracts. In any case, the framework contract ceiling, i.e., the maximum amount to be spent under the framework contracts for each lot, shall not be exceeded.

The framework contract ceiling for each lot is indicated in Section 5.1.5 of the Contract Notice.

1.8. Duration of the contract: how long do we plan to use the contract?

The framework contracts resulting from this call for tenders will be concluded for the duration specified per lot below. The details of the initial contract duration and possible renewals are set out in the draft contract for the respective lot.

Lot number	Lot duration
Lot 1	48 months (24 months + 12 months + 12 months)
Lot 2	48 months (24 months + 12 months + 12 months)

³ Regulation (EU, Euratom) 2024/2509 of the European Parliament and of the Council of 23 September 2024 on the financial rules applicable to the general budget of the Union (recast).

1.9. Electronic exchange system: can exchanges under the contract be automated?

For all exchanges with the contractors during the implementation of the framework contracts resulting from this call for tenders, as well as for any future possible subsequent proceedings, including, but not limited to, for the purposes of EDES ([European Union's Early Detection and Exclusion System](#)), the contracting authority may use an electronic exchange system meeting the requirements of Article 151 of the Financial Regulation. At the request of the contracting authority, the use of such an electronic exchange system shall become mandatory for the contractors at no additional cost for the contracting authority. Details on specifications, access, terms, and conditions of use will be provided in advance.

1.10. Security

When performing tasks for the contracting authority in execution of the contract, the contractor and its personnel shall comply with the contracting authority's applicable security requirements.

For the Commission (and, when relevant - for the Executive Agencies), the applicable security requirements include:

- ✓ [Commission Decision \(EU, Euratom\) 2017/46](#) of 10 January 2017 on the security of communication and information systems in the European Commission, its subsequent versions, its implementing rules (as adapted from time to time) and the corresponding security standards, guidelines and notices;
- ✓ [Commission Decision \(EU, Euratom\) 2015/444](#) of 13 March 2015 on the security rules for protecting EU classified information, its subsequent versions, its implementing rules (as adapted from time to time) and the corresponding security standards, guidelines and notices;
- ✓ [Commission Decision \(EU, Euratom\) 2015/443](#) of 13 March 2015 on Security in the Commission, as well as all its subsequent versions;
- ✓ The documents available under the following link:
https://ec.europa.eu/info/files/security-standards-information-systems_en

2. GENERAL INFORMATION ON TENDERING

2.1. Legal basis: what are the rules?

This call for tenders is governed by the provisions of the Regulation (EU, Euratom) 2024/2509 of the European Parliament and of the Council of 23 September 2024 on the financial rules applicable to the general budget of the Union (the Financial Regulation recast).

The Lead Contracting Authority has chosen to award the two framework contracts resulting from this call for tenders through an open procedure pursuant to Article 167(1) (a) of the Financial Regulation. In an open procedure, any interested economic operator (any natural or legal person who offers to supply products, provide services, or execute works) may submit a tender.

2.2. Entities subject to restrictive measures and rules on access to procurement: who may submit a tender?

Tenderers must ensure that no involved entities (see Section 2.4) nor any subcontractors, including those which do not need to be identified in the tender (see Section 2.4.2), are subject to [EU restrictive measures](#) adopted under Article 29 of the Treaty on the European Union (TEU) or Article 215 of the Treaty on the Functioning of the EU (TFEU)⁴, consisting of a prohibition to make available or transfer funds or economic resources or to provide financing or financial assistance to them directly or indirectly, or of an asset freeze. The prohibition applies throughout the whole performance of the contract.

Participation in this call for tenders is open on equal terms to all natural and legal persons coming within the scope of the [Treaties](#), as well as to international organisations.

It is also open to all natural and legal persons established in a third country provided that it has a special agreement with the European Union in the field of public procurement on the conditions laid down in that agreement.

The Agreement on Government Procurement⁵ concluded within the World Trade Organisation does not apply. Therefore, the participation to this call for tenders is not open to natural and legal persons established in the countries that have ratified this Agreement. The rules on access to procurement do not apply to entities on whose capacity tenderers rely to fulfil the selection criteria, nor to subcontractors. Subcontracting may not be used with the intent or effect to circumvent the rules on access to procurement.

To enable the contracting authority to verify the access, each tenderer must indicate its country of establishment (in case of a joint tender – the country of establishment of each group member) and must present the supporting evidence normally acceptable under the law

⁴ Please note that the EU Official Journal contains the official list and, in case of conflict, its content prevails over that of the [EU Sanctions Map](#).

⁵ https://www.wto.org/english/tratop_E/gproc_e/gp_gpa_e.htm.

of that country. The same document(s) could be used to prove the country/-ies and/or territory/-ies of establishment and the delegation(s) of the authorisation to sign, as described in Section 4.3.

2.3. Registration in the Participant Register: why register?

Any economic operator willing to participate in this call for tenders must be registered in the [Participant Register](#) – an online register of organisations and natural persons (participants) participating in calls for tenders or proposals of the European Commission and other EU institutions/bodies.

On registering, each participant obtains a Participant Identification Code (PIC, 9-digit number), which acts as its unique identifier in the Participant Register. A participant needs to register only once – the information provided can be further updated or re-used by the participant in other calls for tenders or calls for proposals of the European Commission and other EU institutions/bodies.

🔔 **Each participant needs to ensure that its SME status in the Participant Register is registered and kept up to date.**

At any moment during the procurement procedure, the Research Executive Agency Validation Services (hereafter, *the EU Validation Services*) may contact the participant and ask for supporting documents on legal existence and status, and on financial capacity. The requests will be made through the register's messaging system to the e-mail address of the participant's contact person indicated in the register. It is the responsibility of the participant to provide a valid e-mail address and to check it regularly. The documents that may be requested by *the EU Validation Services* are listed in the [EU Grants and Tenders Rules on Legal Entity Validation, LEAR appointment and Financial Capacity assessment](#).

🔔 **Please note that a request for supporting documents by the *EU Validation Services* in no way implies that the tenderer has been successful.**

2.4. Ways to submit a tender: how can economic operators organise themselves to submit a tender?

Economic operators can submit a tender either as a sole economic operator (sole tenderer) or as a group of economic operators (joint tender)⁶. In either case, subcontracting is permitted.

Tenders must be drawn and submitted in complete independence and autonomously from the other tenders. A declaration in this regard by each tenderer (in case of a joint tender, by the group leader) shall be requested.

A natural or legal person cannot participate at the same time and for the same lot within the same procedure either as member of two or more groups of economic operators or as a sole

⁶ Each economic operator participating in the joint tender is referred to as “group member”.

tenderer and member of another group of economic operators. In such case, all tenders in which that person has participated, either as sole tenderer or as member of a group of economic operators, will be rejected.

Economic operators linked by a relationship of control or of association (e.g., belonging to the same economic/corporate group) are allowed to submit different and separate tenders provided that each tenderer is able to demonstrate that its tender was drawn independently and autonomously.

A natural or legal person may act as subcontractor for several tenderers as long as the tenders are drawn and submitted in complete independence and autonomously from each other. However, cross-subcontracting among tenderers is forbidden, more precisely an entity “A” may participate as tenderer (either as sole tenderer or as member of a group of economic operators) and as subcontractor to another tenderer “B” for the same lot within the same procurement procedure. However, in this case, it is forbidden that tenderer “B” (or any of its participating members in case of a group of economic operators) is at the same time subcontractor for tenderer “A” (or for the group of economic operators in which “A” participates) for the same lot within the same procurement procedure. In this case, both tenders A and B shall be rejected.

In order to fulfil the selection criteria set out in Section 3.2, the tenderer can rely on the capacities of subcontractors (see Section 2.4.2) or other entities that are not subcontractors (see Section 2.4.3).

An **“involved entity”** is any economic operator involved in the tender. This includes the following four categories of economic operators:

- sole tenderer,
- group members (including group leader),
- identified subcontractors (see Section 2.4.2), and
- other entities (that are not subcontractors) on whose capacity the tenderer relies to fulfil the selection criteria.

The role of each entity involved in a tender must be clearly specified in the eSubmission application: i) sole tenderer, ii) group leader (in case of a joint tender), iii) group member (in case of a joint tender), or iv) subcontractor⁷.

For an entity on whose capacities the tenderer relies to fulfil the selection criteria (that is not a subcontractor), this role is defined in the commitment letter ([Annex 5.2](#))

2.4.1. Joint tenders

A joint tender is a situation where a tender is submitted by a group (with or without legal form) of economic operators regardless of the link they have between them in the group. The group, as a whole, is considered a tenderer⁸.

⁷ Only identified subcontractors (see Section 2.4.2) must be specified in the eSubmission application.

All group members assume joint and several liability towards the contracting authority for the performance of the contract as a whole.

Group members must appoint from among themselves a group leader (the group leader) as a single point of contact authorised to act on their behalf in connection with the submission of the tender and all relevant questions, clarification requests, notifications, etc., that may be received during the evaluation, award and until the contract signature. All group members (including the group leader) must sign an Agreement/Power of attorney drawn up in the model attached in **Annex 3**.

The joint tender must clearly indicate the role and tasks of each group member, including those of the group leader who will act as the Contracting Authority's contact point for the contract's administrative or financial aspects and operational management. The group leader will have full authority to bind the group and each of its members during contract execution.

If the joint tender is successful, the contracting authority shall sign the contract with the group leader, authorised by the other members to sign the contract also on their behalf via the Agreement/Power of attorney drawn up in the model attached in **Annex 3**.

Changes in the composition of the group during the procurement procedure (after the deadline for submission of tenders and before contract signature) shall lead to rejection of the tender, except for the following case[s]:

- case of a merger or takeover of a group member (universal succession), provided that the following cumulative conditions are fulfilled:
 - the new entity is not subject to restrictive measures, has access to procurement (see Section 2.2) and is not in an exclusion situation (see Section 3.1),
 - all the tasks assigned to the former entity are taken over by the new entity member of the group,
 - the group meets the selection criteria (see Section 3.2),
 - the change must not make the tender non-compliant with the procurement documents,
 - the terms of the originally submitted tender are not altered substantially and the evaluation of award criteria of the originally submitted tender is not modified,
 - the new entity undertakes to replace the former entity for the implementation of the contract, in case of an award.
- case where a group member is subject to restrictive measures or does not have access to procurement (see Section 2.2) or is in an exclusion situation (see Section 3.1), provided the following cumulative conditions are fulfilled:
 - none of the remaining group members is subject to restrictive measures (see Section 2.2),
 - all the remaining group members have access to procurement (see Section 2.2),
 - the remaining group members meet the selection criteria (see Section 3.2),

⁸ References to *tenderer* or *tenderers* in this document shall be understood as covering both sole tenderers and groups of economic operators submitting a joint tender.

- the change must not make the tender non-compliant with the procurement documents,
- the terms of the originally submitted tender are not altered substantially and the evaluation of award criteria of the originally submitted tender is not modified,
- the continuation of the participation of the remaining group members in the procurement procedure does not put the other tenderers in a competitive disadvantage,
- the remaining group members undertake to implement the contract, in case of an award, without the excluded group member.

The replacement of the group member not having access to procurement or in a situation of exclusion is not allowed.

2.4.2. Subcontracting

Subcontracting is the situation where the contractor enters into legal commitments with other economic operators, which will perform part of the contract on its behalf. The contractor retains full liability towards the contracting authority for performance of the contract as a whole.

The following shall not be considered subcontracting:

- a) Use of workers posted to the contractor by another company owned by the same group and established in a Member State (“intra-group posting” as defined by Article 1, 3, (b) of [Directive 96/71/EC concerning the posting of workers in the framework of the provision of services](#)).
- b) Use of workers hired out to the contractor by a temporary employment undertaking or placement agency established in a Member State (“hiring out of workers” as defined by Article 1, 3, (c) of [Directive 96/71/EC concerning the posting of workers in the framework of the provision of services](#)).
- c) Use of workers temporarily transferred to the contractor from an undertaking established outside the territory of a Member State and that belongs to the same group (“intra-corporate transfer” as defined by Article 3, (b) of [Directive 2014/66/EU on the conditions of entry and residence of third-country nationals in the framework of an intra-corporate transfer](#)) .
- d) Use of staff without employment contract (“self-employed persons working for the contractor”), without the tasks of the self-employed persons being specific well-defined parts of the contract.
- e) Use of suppliers and/or transporters by the contractor, to perform the contract at the place of performance, unless the economic activities of the suppliers and/or the transporting services are within the subject of this call for tenders (see Section 1.4).
- f) Performance of part of the contract by members of an EEIG (European Economic Interest Grouping), when the EEIG is itself a contractor or a group member.

The persons mentioned in points a), b), c) and d) above will be considered as “personnel” of the contractor as defined in the contract.

All contractual tasks may be subcontracted unless the procurement documents expressly reserve the execution of certain critical tasks to the sole tenderer itself, or in case of a joint tender, to a group member.

By filling in the form available in **Annex 4** (List of identified subcontractors), tenderers are required to give an indication of the proportion of the contract that they intend to subcontract, as well as to identify and describe briefly the envisaged contractual roles/tasks of subcontractors meeting any of these conditions (hereafter referred to as *identified subcontractors*):

- subcontractors on whose capacities the tenderer relies upon to fulfil the selection criteria as described under Section 3.2;
- subcontractors whose intended individual share of the contract, known at the time of submission, is above 20%.

Any such subcontractor must provide the tenderer with a commitment letter drawn up in the model attached in **Annex 5.1** and signed by its authorised representative.

☞ Each tenderer shall identify such subcontractors and provide the commitment letters with its tender. The information must be true and correct at the time of submitting the tender. Any changes or additions regarding the envisaged subcontractors after the deadline for submission of tenders must be justified to the contracting authority.

The above rules apply also where the economic operators, which will perform part of the contract on behalf of a successful tenderer, belong to the same economic/corporate group as the sole tenderer or a member of the group submitting the joint tender.

Changes concerning subcontractors identified in the tender (withdrawal/replacement of a subcontractor, additional subcontracting) during the procurement procedure (after the submission deadline and before contract signature) require the prior written approval of the contracting authority subject to the following verifications:

- any new subcontractor is not subject to restrictive measures, has access to procurement if the rules on access to procurement apply also to subcontractors (see Section 2.2) and is not in an exclusion situation (see Section 3.1),
- the tenderer still fulfils the selection criteria, and the new subcontractor fulfils the selection criteria applicable to it individually, if any;
- the terms of the originally submitted tender are not altered substantially, i.e., all the tasks assigned to the former subcontractor are taken over by another involved entity, the change does not make the tender non-compliant with the tender specifications, and the evaluation of award criteria of the originally submitted tender is not modified.

Subcontracting to subcontractors identified in a tender that was accepted by the contracting authority and resulted in a signed contract is considered as authorised.

2.4.3. Entities (not subcontractors) on whose capacities the tenderer relies to fulfil the selection criteria

To fulfil the selection criteria, a tenderer may also rely on the capacities of other entities (that are not subcontractors), regardless of the legal nature of the links it has with them. It must in that case prove that it will have at its disposal the resources necessary for the performance of

the contract by producing a commitment letter in the model attached in **Annex 5.2**, signed by the authorised representative of such an entity, and the supporting evidence that those other entities have the respective resources⁹.

👉 The above rules apply also where the economic operators on whose capacities the tenderer relies to fulfil the selection criteria (that are not subcontractors) belong to the same economic/corporate group as the sole tenderer or a member of the group submitting the joint tender.

2.4.4. Rules common to subcontractors and entities (not subcontractors) on whose capacities the tenderer relies to fulfil the selection criteria

If a successful tenderer intends to rely on another entity to meet the minimum levels of economic and financial capacity, the contracting authority may require the entity to sign the contract or, alternatively, to provide a joint and several first-call financial guarantee for the performance of the contract.

With regard to technical and professional selection criteria, a tenderer may only rely on the capacities of other entities where the latter will perform the works or services for which these capacities are required, i.e., the latter will either assume the role of subcontractors or will fall within the exceptions listed in Section 2.4.2 and will then assume the role of entities (not subcontractors) on whose capacities the tenderer relies to fulfil the selection criteria.

👉 Relying on the capacities of other entities is only necessary when the capacity of the tenderer is not sufficient to fulfil the required minimum levels of capacity. Abstract commitments that other entities will put resources at the disposal of the tenderer will be disregarded.

⁹ This does not apply to subcontractors on whose capacity the tenderer relies to fulfil the selection criteria – for these, the documentation required for subcontractors must be provided.

3. EVALUATION AND AWARD

The evaluation of the tenders that comply with the submission conditions will consist of the following elements:

- Check if the tenderer is not subject to restrictive measures and has access to procurement (see Section 2.2);
- Verification of administrative compliance (if the tender is drawn up in one of the official EU languages and the required documents are signed by duly authorised representative(s) of the tenderer);
- Verification of non-exclusion of tenderers on the basis of the exclusion criteria;
- Selection of tenderers on the basis of selection criteria;
- Verification of compliance with the *minimum requirements* specified in the procurement documents;
- Evaluation of tenders based on the award criteria.

The contracting authority will evaluate the abovementioned elements in the order that it considers to be the most appropriate.

If the evaluation of one or more elements demonstrates that there are grounds for rejection, the tender will be rejected and will not be the subject of further full evaluation. The unsuccessful tenderers will be informed of the ground for rejection without being given feedback on the non-assessed content of their tenders. Only tenderers for whom the verification of all elements did not reveal grounds for rejection can be awarded the contracts resulting from this call for tenders.

The evaluation will be based on the information and evidence contained in the tenders and, if applicable, on additional information and evidence provided at the request of the contracting authority during the procedure. If any of the declarations or information provided proves to be false, the contracting authority may impose administrative sanctions (exclusion or financial penalties) on the entity providing the false declarations/information.

For the purposes of the evaluation related to exclusion and selection criteria, the contracting authority may also refer to publicly available information, in particular evidence that it can access on a national database free of charge.

3.1. Exclusion criteria

The objective of the exclusion criteria is to assess whether the tenderer is in any of the exclusion situations listed in Article 138(1) of the Financial Regulation.

Tenderers found to be in an exclusion situation will be rejected.

As evidence of non-exclusion, each tenderer¹⁰ needs to submit with its tender a Declaration on Honour¹¹ in the model available in **Annex 2**.¹² The declaration must be signed by an

¹⁰ See in **Annex 1** which of the involved entities participating in a tender need to provide the Declaration on Honour.

authorised representative of the entity providing the declaration. Where the declaration has been signed by hand, the original does not need to be submitted to the contracting authority, but the latter reserves the right to request it from the tenderer at any time during the record-keeping period specified in Section 4.3.

The initial verification of non-exclusion of tenderers will be done on the basis of the submitted declarations and consultation of the [European Union's Early Detection and Exclusion System \(EDES\) database](#).

At any time during the procurement procedure¹³, the contracting authority may request the documents mentioned in the Declaration on Honour as supporting evidence on non-exclusion (i.e., the documentary evidence). It may also request information on natural or legal persons that are members of the administrative, management or supervisory body or that have powers of representation, decision or control, including legal and natural persons within the ownership and control structure and beneficial owners, and appropriate evidence that none of those persons are in one of the exclusion situations referred to in Section A point (1) (c) to (f) of the Declaration on Honour.

All tenderers are **invited to prepare in advance the documentary evidence**, since they may be requested to provide such evidence within a short deadline. In any event, the tenderers proposed by the evaluation committee for the award of the contracts will be requested to provide such evidence.

☞ If the tenderer does not provide valid documentary evidence within the deadlines set by the contracting authority, the latter reserves the right to reject the tender. In any event, in case a tenderer proposed for the award of the contract fails to comply with the above evidence requirement, its tender will be rejected, unless the tenderer can justify the failure on the grounds of material impossibility to provide such evidence.

Annex 1 specifies which of the involved entities participating in a tender need to provide the Declaration on Honour and, when requested by the contracting authority, the supporting evidence.

Please note that a request for evidence in no way implies that the tenderer has been successful.

¹¹ The European Single Procurement Document (ESPD) may not be used yet in European Commission's calls for tenders.

¹² Unless the same declaration has already been submitted for the purposes of another award procedure of the European Commission, the situation has not changed, and the time elapsed since the issuing date of the declaration does not exceed one year.

¹³ The obligation to provide the supporting evidence will be waived in the following situations:

- if the same documents have already been provided in a previous award procedure of the European Commission, have been issued no more than one year before the date of their request by the contracting authority and are still valid at that date;
- if such evidence can be accessed by the contracting authority on a national database free of charge, in which case the economic operator shall provide the contracting authority with the internet address of the database and, if needed, the necessary identification data to retrieve the document;
- if there is a material impossibility to provide such evidence.

3.2. Selection criteria

The objective of the selection criteria is to assess whether the tenderer has the legal, regulatory, economic, financial, technical, and professional capacity to perform the contract.

The selection criteria for this call for tenders, including the minimum levels of capacity, the basis for assessment and the evidence required, are specified in the following subsections.

Tenders submitted by tenderers not meeting the minimum levels of capacity will be rejected.

When submitting its tender each tenderer shall declare on honour that it fulfils the selection criteria for the lot(s) for which it applies in this call for tenders. The model Declaration on Honour available in **Annex 2** shall be used.

The initial assessment of whether a tenderer fulfils the selection criteria will be done based on the submitted declaration(s).

The subsections below specify, under the selection criteria, which supporting evidence must be provided with the tender or may be requested later, at any time during the procurement procedure, within a deadline given by the contracting authority ¹⁴.

The supporting evidence must be provided in accordance with the applicable basis for assessment of each criterion: in case of a consolidated assessment – only by the involved entities which contribute to the fulfilment of the criterion, and in case of individual assessment – by each entity to whom the criterion applies individually.

In case not all supporting evidence, under the selection criteria, is requested with the tender, all tenderers are **invited to prepare in advance the documentary evidence**, since they may be requested to provide such evidence within a short deadline. In any event, the tenderers proposed by the evaluation committee for the award of the contracts will be requested to provide all such supporting/documentary evidence.

👉 If the tenderer does not provide valid documentary evidence within the deadlines set by the contracting authority, the contracting authority reserves the right to reject the tender.

In any event, in case a tenderer proposed for the award of the contract fails to comply with the above evidence requirement, its tender will be rejected, unless there is a ground for a waiver.

Please note that a request for supporting evidence in no way implies that the tenderer has been successful.

¹⁴ The obligation to provide the supporting evidence will be waived in the following situations:

- if the same documents have already been provided in a previous award procedure of the European Commission and are still up-to-date; and
- if such evidence can be accessed by the contracting authority on a national database free of charge, in which case the economic operator shall provide the contracting authority with the internet address of the database and, if needed, the necessary identification data to retrieve the document.

3.2.1. Legal and regulatory capacity

Tenderers can be natural or legal persons. Tenderers are not obliged to take a specific legal form to submit their tenders.

Where tenderers submit a tender through an entity, which lacks legal personality (e.g., a branch), the compliance with the exclusion criteria, selection criteria, the rules on access to procurement, as well as the absence of restrictive measures, shall be assessed at the level of the tenderers.

Tenderers must prove that they have legal capacity to perform the contract and the regulatory capacity to pursue the professional activity necessary to carry out the work subject to this call for tenders.

The legal and regulatory capacity shall be proven by the evidence listed below:

- A copy of an official document (Company Register or similar) confirming that the Tenderer is already established as a recognised legal entity and is registered in a relevant profession or trade register.

The legal and regulatory capacity does not need to be provided with the tender but may be requested by the contracting authority at any time during the procedure. It applies to each member of the group in case of a joint tender.

In addition, involved entities (see Section 2.4) and all subcontractors, including those which do not need to be identified in the tender (see Section 2.4.2), must not be subject to [EU restrictive measures](#) adopted under Article 29 of the Treaty on the European Union (TEU) or Article 215 of the Treaty on the Functioning of the EU (TFEU)¹⁵ that constitute a legal impediment to perform the contract. This requirement will be assessed by reference to the EU restrictive measures in force. Therefore, the tenderer is not required to submit any evidence of not being subject to EU restrictive measures.

3.2.2. Economic and financial capacity

Tenderers must comply with the following selection criteria to prove that they have the necessary economic and financial capacity to perform the contract.

Lot 1

Criterion F1	
Minimum level of capacity	Average yearly turnover of the last three financial years above EUR 350 000
Basis for assessment	This criterion applies to the tenderer as a whole, i.e. a consolidated assessment of the combined economic and financial capacities of all involved entities will be carried out.

¹⁵ Please note that the EU Official Journal contains the official list and, in case of conflict, its content prevails over that of the [EU Sanctions Map](#).

Evidence	Copy of the profit and loss accounts and balance sheets for the last three years for which accounts have been closed from each concerned involved entity, or, failing that, appropriate statements from banks. The most recent year must have been closed within the last 18 months.
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Lot 2

Criterion F1	
Minimum level of capacity	Average yearly turnover of the last three financial years above EUR 150 000 .
Basis for assessment	This criterion applies to the tenderer as a whole, i.e. a consolidated assessment of the combined capacities of all involved entities will be carried out.
Evidence	Copy of the profit and loss accounts and balance sheets for the last three years for which accounts have been closed from each concerned involved entity, or, failing that, appropriate statements from banks. The most recent year must have been closed within the last 18 months.

☞ The evidence of economic and financial capacity does not need to be provided with the tender but may be requested by the contracting authority or the *EU Validation Services* at any time during the procedure.

3.2.3. Technical and professional capacity

☞ With regard to technical and professional selection criteria, a tenderer may only rely on the capacities of other entities where the latter will perform the works or services for which these capacities are required. The entity or entities on whose technical and professional capacity the tenderer relies will either assume the role of a subcontractor or fall within the exceptions listed in Section 2.4.2.

Tenderers must comply with the following selection criteria to prove that they have the necessary technical and professional capacity to perform the contract:

Lot 1

Criterion T1	
The tenderer must prove experience in the field of supply of medical equipment.	
Minimum level of capacity	At least 2 similar (in scope and complexity) projects completed in the last three years preceding the tender submission deadline, with a minimum value for each of them € 100 000.
Basis for assessment	This criterion applies to the tenderer as a whole, i.e., the consolidated assessment of the combined technical and professional capacities of all involved entities will be carried out.
Evidence	A list of projects meeting the minimum level of technical and professional capacity. The list shall include details of their start and end-date, total project amount and scope, role and amount invoiced. In case of projects still ongoing, only

	the portion completed during the reference period will be taken into consideration. As supporting documents for each project reference, the contracting authority may also request statements issued by the clients and take contact with them.
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Criterion T2	
The candidate must prove experience in the field of delivery of medical equipment in the main regions where the CFSP bodies and entities are deployed	
Minimum level of capacity	At least 2 similar projects in the last three years preceding the tender submission deadline involving the supply of medical equipment for a minimum value of EUR 75 000 in at least one of the following regions: • Africa • The Middle East • Asia • IPA Countries¹⁶ • Eastern Neighbourhood of the EU¹⁷
Basis for assessment	This criterion applies to the tenderer as a whole, i.e., the consolidated assessment of combined technical and professional capacities of all involved entities will be carried out.
Evidence	A list of projects meeting the minimum level of technical and professional capacity. The list shall include details of their start and end date, total project amount and scope, role and amount invoiced. In case of projects still ongoing, only the portion completed during the reference period will be taken into consideration. As supporting documents for each project reference, the contracting authority may also request statements issued by the clients and take contact with them.

Lot 2

Criterion T1	
The tenderer must prove experience in the field of supply of medical equipment.	
Minimum level of capacity	At least 2 similar (in scope and complexity) projects completed in the last three years preceding the tender submission deadline, with a minimum value for each of

¹⁶https://neighbourhood-enlargement.ec.europa.eu/enlargement-policy/overview-instrument-pre-accession-assistance_en

¹⁷ https://neighbourhood-enlargement.ec.europa.eu/countries_en

	them € 75 000.
Basis for assessment	This criterion applies to the tenderer as a whole, i.e. the consolidated assessment of combined technical and professional capacities of all involved entities will be carried out.
Evidence	A list of projects meeting the minimum level of technical and professional capacity. The list shall include details of their start and end date, total project amount and scope, role and amount invoiced. In case of projects still ongoing, only the portion completed during the reference period will be taken into consideration. As supporting documents for each project reference, the contracting authority may also request statements issued by the clients and take contact with them.

Criterion T2	
The candidate must prove experience in the field of delivery of medical equipment in the main regions where the CFSP bodies and entities are deployed	
Minimum level of capacity	At least 2 similar projects (in scope and complexity) in the last three years preceding the submission deadline involving the supply of medical equipment for a minimum value of EUR 50 000 in at least one of the following regions: • Africa • The Middle East • Asia • IPA Countries¹⁸ • Eastern Neighbourhood of the EU (ENI)¹⁹
Basis for assessment	This criterion applies to the tenderer as a whole, i.e. the consolidated assessment of combined technical and professional capacities of all involved entities will be carried out.
Evidence	A list of projects meeting the minimum level of capacity. The list shall include details of their start and end-date, total project amount and scope, role and amount invoiced. In case of projects still ongoing, only the portion completed during the reference period will be taken into consideration. As supporting documents for each project reference, the contracting authority may also request statements issued by the clients and take contact with them.

¹⁸ https://neighbourhood-enlargement.ec.europa.eu/enlargement-policy/overview-instrument-pre-accession-assistance_en

¹⁹ https://neighbourhood-enlargement.ec.europa.eu/countries_en

👉 The evidence of technical and professional capacity does not need to be provided with the tender but may be requested by the contracting authority at any time during the procedure.

3.3. Compliance with the conditions for participation and *minimum requirements* specified in the procurement documents

By submitting a tender, a tenderer commits to perform the contract in full compliance with the terms and conditions of the procurement documents for this call for tenders.

Particular attention is drawn to the *minimum requirements* specified in **Annex 6** and to the fact that tenders must comply with applicable data protection, environmental, social, and labour law obligations established by Union law, national legislation, collective agreements, or the international environmental, social, and labour conventions listed in Annex X to Directive 2014/24/EU.

The *minimum requirements* shall be observed throughout the entire duration of the contract. Compliance with these *minimum requirements* is mandatory and cannot be subject to any assumptions, limitations, conditions, or reservations on the part of a tenderer.

Tenderers must declare when submitting their tenders in eSubmission whether their tenders comply with the *minimum requirements* specified in the procurement documents.

👉 **Tenders that are not compliant with the applicable *minimum requirements* shall be rejected.**

3.4. Award criteria

The objective of the award criteria is to evaluate the tenders with a view to choosing the most economically advantageous tender.

Tenders will be evaluated based on the following award criteria and their weighting:

Lot 1

1. Price [Cost] - 100

The price considered for evaluation will be the total price of the tender, covering all the requirements set out in the tender specifications.

Lot 2

1. Price [Cost] - 100

The price considered for evaluation will be the total price of the tender, covering all the requirements set out in the administrative specifications.

3.5. Award (ranking of tenders)

Tenders for the lots for which the award method is the lowest price shall be ranked in ascending order of the total price considered for evaluation, with the lowest price tender being ranked first.

👉 The contract shall be awarded to the tender ranked first, which complies with the *minimum requirements* specified in the procurement documents and is submitted by a tenderer not subject to restrictive measures, having access to procurement, not in an exclusion situation and fulfilling the selection criteria.

👉 **Detection of abnormally low tenders**

Tenderers must be aware of Point 23 of Annex I to the Financial Regulation on abnormally low tenders and of the possibility for rejection of the tender based on it.

4. FORM AND CONTENT OF THE TENDER

4.1. Form of the tender: how to submit the tender?

Tenders are to be submitted via the eSubmission application according to the instructions laid down in the Invitation letter and the eSubmission Quick Guide available at the link below:

https://wikis.ec.europa.eu/display/FTPportal/Open+procedures_EN

☝ Make sure you prepare and submit your tender in eSubmission early enough to ensure it is received within the deadline indicated under Section 5.1.12 of the Contract Notice and/or on Funding &Tenders Portal (F&T Portal)²⁰.

4.2. Content of the tender: what documents to submit with the tender?

The documents to be submitted with the tender in eSubmission are listed in **Annex 1**.

Tenderers willing to submit tenders for more than one lot need to upload a separate technical and financial tender for each of the lots in which they are interested.

The following requirements apply to the technical and financial tender to be uploaded in eSubmission:

- *Technical tender*

Tenderers are not requested to submit a technical tender for any lot for which the award method is the lowest price

- *Financial tender*

A complete financial tender, including the breakdown of the price, needs to be submitted. For this purpose, the Financial Model in **Annex 6** shall be used.

The total amount of the tender as indicated in cell G739 (for Lot 1) and G815 (for Lot2) must be encoded in the field “*Total amount*” under the section “*Tender data*” in eSubmission for any lot for which the award method is lowest price/cost.

It is the responsibility of each tenderer to ensure that the total amount of the tender inserted in the eSubmission field “*Total amount*” corresponds to the amount indicated in the uploaded financial tender. In case of discrepancies, only the amount indicated in the financial tender will be considered.]

The financial tender shall be:

²⁰ <https://ec.europa.eu/info/funding-tenders/opportunities/portal/screen/home>

- expressed in euros (€). Tenderers from countries outside the euro zone must quote their prices in euro. The price quoted may not be revised in line with exchange rate movements. It is for the tenderer to bear the risks or the benefits deriving from any exchange rate variation.
- quoted free of all duties, taxes, and other charges, i.e., also free of VAT.

☞ The European Union institutions are exempt from such charges in the EU under Articles 3 and 4 of the Protocol on the Privileges and Immunities of the European Union of 8 April 1965 annexed to the Treaty on the Functioning of the European Union. Exemption is granted to the Commission by the governments of the Member States, either through refunds upon presentation of documentary evidence or by direct exemption.

In case of doubt about the applicable VAT system, it is the tenderer's responsibility to contact its national authorities to clarify the way in which the European Union is exempt from VAT.

4.3. Signature policy: how can documents be signed?

Where a document needs to be signed, the signature must be either hand-written or, preferably, a qualified electronic signature (QES) as defined in [Regulation \(EU\) No 910/2014 on electronic identification and trust services for electronic transactions in the internal market \(the eIDAS Regulation\)](#).

Tenderers are strongly encouraged to sign with a QES²¹ all documents requiring a signature and only exceptionally to sign such documents by hand, as hand-written signatures lead to an additional administrative burden for both the tenderer and the contracting authority.

The originals of any hand-signed documents (other than the Contract) do not need to be submitted to the contracting authority, but the tenderer must keep them for a period of five years starting from the notification of the outcome of the procedure or, where the tenderer has been awarded a contract resulting from this call for tenders and the contract has been signed, the payment of the balance.

All documents must be signed by the signatories (when they are individuals) or by their duly authorised legal representatives.

For the following documents, when signed by duly authorised legal representatives, tenderers must provide evidence for the delegation of the authorisation to sign:

- The Declaration on Honour of the tenderer (in case of a joint tender – the Declarations on Honour of all group members);
- [In the case of a joint tender] The Agreement/Power(s) of attorney drawn up using the model attached in **Annex 3**.

²¹ See [here](#) how to apply a QES on a document exchanged with a European institution, office, body, or agency.

The delegation of the authorisation to sign on behalf of the signatories (including, in the case of proxy(-ies), the chain of authorisations) must be evidenced by appropriate written evidence (i.e., copy of the notice of appointment of the persons authorised to represent the legal entity in signing contracts (together or alone), or a copy of the publication of such appointment if the legislation which applies to signatory requires such publication or a power of attorney).

A document that the contracting authority can access on a national database free of charge does not need to be submitted if the contracting authority is provided with the exact internet link and, if applicable, the necessary identification data to retrieve the document.

4.4. Confidentiality of tenders: what information and under what conditions can be disclosed?

Once the contracting authority has opened a tender, it becomes its property and shall be treated confidentially, subject to the following:

- For the purposes of evaluating the tender and, if applicable, implementing the contract, performing audits, benchmarking, etc., the contracting authority is entitled to make available (any part of) the tender to its staff and the staff of other Union institutions, offices, bodies and agencies, as well to other persons and entities working for the contracting authority or cooperating with it, including contractors or subcontractors and their staff, provided that they are bound by an obligation of confidentiality.
- After the signature of the award decision, tenderers whose tenders were received in accordance with the submission modalities, who are not subject to restrictive measures, have access to procurement, who are not found to be in an exclusion situation referred to in Article 138(1) of the FR, who are not rejected under Article 143 of the FR, whose tenders are not found to be incompliant with the procurement documents, and who make a request in writing, will be notified of the name of the tenderer to whom the contract is awarded for the lot(s) for which the tenderer applied, the characteristics and relative advantages of the successful tender and its total financial tender amount²². The contracting authority may decide to withhold certain information that it assesses as being confidential, in particular where its release would prejudice the legitimate commercial interests of economic operators or might distort fair competition between them. Such information may include, without being limited to, confidential aspects of tenders such as unit prices included in the financial tender, technical or trade secrets²³.
- The contracting authority may disclose the submitted tender in the context of a request for public access to documents, or in other cases where the applicable law requires its disclosure. Unless there is an overriding public interest in disclosure²⁴, the contracting

²² For a call for tenders [lot] resulting in multiple framework contracts this information will be provided for all successful tenderers and tenders.

²³ For the definition of trade secrets please see Article 2 (1) of [Directive \(EU\) 2016/943 on the protection of undisclosed know-how and business information \(trade secrets\) against their unlawful acquisition, use and disclosure](#).

²⁴ See Article 4 (2) of the [Regulation \(EC\) No 1049/2001 regarding public access to European Parliament, Council and Commission documents](#).

authority may refuse to provide full access to the submitted tender, redacting the parts (if any) that contain confidential information, the disclosure of which would undermine the protection of commercial interests of the tenderer, including intellectual property.

👉 The contracting authority will disregard general statements that the whole tender or substantial parts of it contain confidential information. Tenderers need to clearly mark the information they consider confidential and explain why it may not be disclosed. The contracting authority reserves the right to make its own assessment of the confidential nature of any information contained in the tender.

APPENDIX:

LIST OF REFERENCES

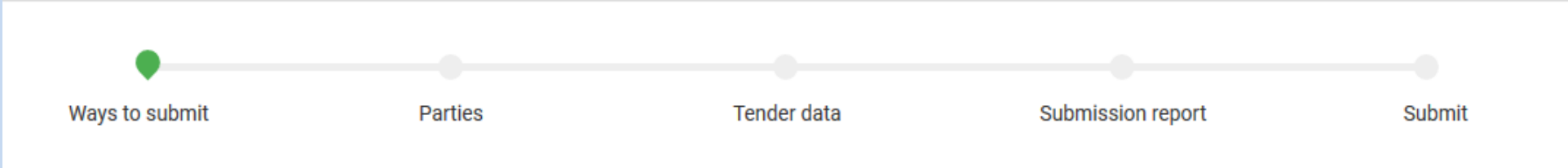
<i>Award criteria</i>	See Section 3.4
<i>Contracting Authority</i>	See Section 1.1
<i>Entities on whose capacities the tenderer relies to fulfil the selection criteria</i>	See Section 2.4.3
<i>EU Validation services</i>	See Section 2.3 EU Grants and Tenders Rules on Legal Entity Validation, LEAR appointment and Financial Capacity assessment
<i>Exclusion criteria</i>	See Section 3.1
<i>Financial Regulation</i>	Regulation (EU, Euratom) 2024/2509 of the European Parliament and of the Council of 23 September 2024 on the financial rules applicable to the general budget of the Union (Financial Regulation recast)
<i>Framework Contract</i>	See Section 1.6
<i>Framework Contract's ceiling</i>	See Section 1.7
<i>Group leader</i>	See Section 2.4.1
<i>Group member</i>	See Section 2.4.1
<i>Identified subcontractors</i>	See Section 2.4.2
<i>Involved entities</i>	See Section 2.4
<i>Joint tender</i>	See Section 2.4.1
<i>Participating entities</i>	See Section 1.1
<i>Participant Register</i>	See Section 2.3 https://ec.europa.eu/info/funding-tenders/opportunities/portal/screen/how-to-participate/participant-register
<i>Selection criteria</i>	See Section 3.2
<i>Sole tenderer</i>	See Section 2.4
<i>Subcontracting/subcontractor</i>	See Section 2.4.2
<i>Treaties</i>	The EU Treaties: https://europa.eu/european-union/law/treaties_en

ANNEXES

Annex 1. List of documents to be submitted with the tender or during the procedure

The purpose of this table is to help tenderers prepare their tenders and set out clearly what documents must be submitted, concerning which involved entities, when (with the tender or later on request of the contracting authority) and where (eSubmission, Participant register, etc.).

If you request also other evidence of economic & financial or technical & professional capacity, insert a new line for each criterion, designate it clearly (e.g. Evidence of technical and professional capacity T2), specify who must provide the evidence and when.

Description	Sole tenderer	Joint tender		Identified Subcontractor	Entity on whose capacity is being relied (that is not subcontractor)	When and where to submit the document?	Instructions for uploading in eSubmission (if applicable)	
		Group leader	Group member				How to name the file?	Where to upload?
1. Identification and information about the tenderer.								
eSubmission view								
								
Declaration on Honour on Exclusion and Selection Criteria (see Section 3.1) model in Annex 2						With the tender in eSubmission	'Declaration on Honour'	With the concerned entity under 'Parties' → 'Identification of the participant' → 'Attachments' → 'Declaration on Honour'. For entities that are not subcontractors and on whose

								capacity the tenderer relies to fulfil the selection criteria, the document must be uploaded in the section of the sole tenderer or group leader: →'Identification of the participant' →'Attachments'→'Other documents'.
Evidence that the person signing the documents is an authorised representative of the entity ²⁵ (see Section 4.3)	☒	☒	☒			With the tender in eSubmission	'Authorisation to sign documents'	With the concerned entity under 'Parties' →'Identification of the participant' →'Attachments'→'Other documents'.
Agreement/Power of attorney (see Section 2.4.1) <i>model in Annex 3</i>		☒	☒			With the tender in eSubmission	'Agreement_ Power of attorney'	In the group leader's section under 'Parties' →'Identification of the participant' →'Attachments'→'Other documents'.
List of identified subcontractors (see Section 2.4.2) <i>model in Annex 4</i>	☒	☒				With the tender in eSubmission	'List of identified subcontractors'	In the sole tenderer's or the group leader's section under 'Parties' →'Identification of the participant' →'Attachments'→'Other documents'.

²⁵ A document that the contracting authority can access on a national database free of charge does not need to be submitted if the contracting authority is provided with the exact internet link and, if applicable, the necessary identification data to retrieve the document.

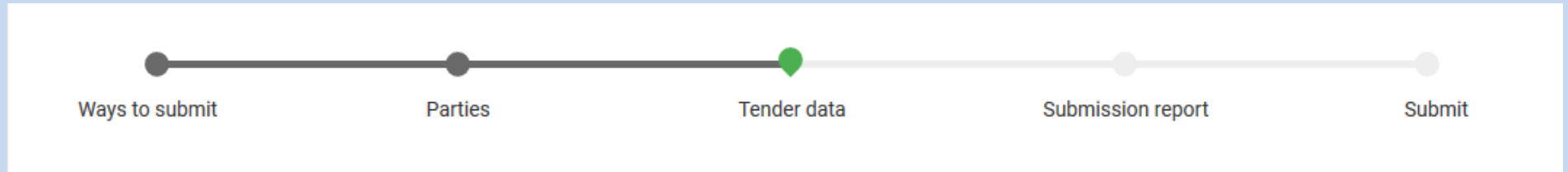
								documents'.
Commitment letter (see Section 2.4.2 and 2.4.3)				 <i>(model in Annex 5.1)</i>	 <i>(model in Annex 5.2)</i>	With the tender in eSubmission	'Commitment letter'	With the concerned entity under 'Parties' → 'Identification of the participant' → 'Attachments' → 'Other documents'.
Evidence of non-exclusion (see Section 3.1)						<i>Option 1</i> Tenderers (sole tenderers/all group members in case of a joint tender) must provide the evidence with their tenders in eSubmission. Subcontractors and entities on whose capacity a tenderer relies to fulfil the selection criteria must provide the evidence only upon request by the contracting authority.	<i>(when option 1 is used)</i> No specific requirements how to name the file(s).	<i>(when option 1 is used)</i> With the concerned entity under 'Parties' → 'Identification of the participant' → 'Attachments' → 'Exclusion criteria'.
						<i>Option 2</i> Tenderers (sole tenderers/all group members in case of a joint tender) must provide the evidence when requested by the contracting authority and, in any event, if a tenderer is successful, before the award of the contract. Subcontractors and entities on whose capacity a tenderer relies to fulfil the selection criteria must provide the evidence only upon request by the contracting authority.	<i>(when option 2 is used)</i> n.a.	<i>(when option 2 is used)</i> n.a.

Evidence of legal existence and status (see Section 2.3)	☒	☒	☒			Only upon request by the EU Validation services At any time during the procedure In the Participant Register	n.a.	n.a.
Evidence of legal capacity (see Section 3.2.1) <i>If the criterion applies individually indicate to which of the involved entities it applies</i>						Option 1 Only upon request by the contracting authority At any time during the procedure Option 2 With the tender in eSubmission	<i>(when option 1 is used)</i> n.a. <i>(when option 2 is used)</i> No specific requirements how to name the file(s).	<i>(when option 1 is used)</i> n.a. <i>(when option 2 is used)</i> With the concerned entity under 'Parties' → 'Identification of the participant' → 'Attachments' → 'Legal and regulatory capacity'.
Evidence of economic and financial capacity F1 (see Section 3.2.2)	The documents must be provided only by the involved entities which contribute to reaching the minimum capacity level for criterion F1					Option 1 Only upon request by the contracting authority [the EU Validation services] At any time during the procedure [In the Participant Register]	<i>(when option 1 is used)</i> n.a. <i>(when option 2 is used)</i> 'Balance_sheet_entity_year' 'Profit_Loss_'	<i>(when option 1 is used)</i> n.a. <i>(when option 2 is used)</i> With the group leader or the sole tenderer under 'Parties' → 'Identification of the

						Option 2 With the tender in eSubmission	Account_entity_year'	participant' →'Attachments'→'Economic and financial capacity'.
Evidence of economic and financial capacity F2 (see Section 3.2.2) <i>If the criterion applies individually indicate to which of the involved entities it applies</i>						Option 1 Only upon request by the contracting authority [or the EU Validation services] At any time during the procedure Option 2 With the tender in eSubmission	<i>(when option 1 is used)</i> n.a. <i>(when option 2 is used)</i> 'Balance_sheet_entity_year" 'Profit_Loss_Account_entity_year'	<i>(when option 1 is used)</i> n.a. <i>(when option 2 is used)</i> With the group leader or the sole tenderer under 'Parties' →'Identification of the participant' →'Attachments'→'Economic and financial capacity'.
Evidence of technical and professional capacity T1 (see Section 3.2.3)	The documents must be provided only by the involved entities who contribute to reaching the minimum capacity level for criterion T1					Option 1 Only upon request by the contracting authority At any time during the procedure Option 2 With the tender in eSubmission	<i>(when option 1 is used)</i> n.a. <i>(when option 2 is used)</i> 'Project_reference_No.1" 'Project_reference_No.2"	<i>(when option 1 is used)</i> n.a. <i>(when option 2 is used)</i> With the group leader or the sole tenderer under 'Parties' →'Identification of the participant' →'Attachments'→'Technical and professional capacity'.

2. Tender data.

eSubmission view



Failure to upload the following documents in eSubmission will lead to rejection of the tender.

Technical tender (see Section 4.2) <i>Remove this if technical tender is not mandatory (option for lowest price/cost award method)</i>	☒	☒				With the tender in eSubmission	'Technical tender'	Under section 'Tender Data' → 'Technical tender'
Financial tender (see Section 4.2) <i>model in Annex 6</i>	☒	☒				With the tender in eSubmission	'Financial tender'	Under 'Tender Data' → 'Financial tender'

Annex 2. Declaration on Honour on exclusion and selection criteria

Annex 3. Agreement/Power of attorney

Call for tenders **XXX/XX/XX/20XY/XYZ - [Lot X]**

[TITLE OF THE PROCEDURE]

AGREEMENT/POWER OF ATTORNEY

The undersigned:

[- Signatory 1 (Name, Function, Legal entity name, Registered address, VAT Number)]

- Signatory 2 (Name, Function, Legal entity name, Registered address, VAT Number)

- ...

- Signatory N (Name, Function, Legal entity name, Registered address, VAT Number)]

having the legal capacity required to act on behalf of the entities they represent,

HEREBY AGREE TO THE FOLLOWING:

- 1) To submit a joint tender (the tender) as members of a group of tenderers (the group), constituted by ***[Insert names of Legal entity 1, Legal entity 2, ... Legal entity N – the name of the group leader must be included here!]*** (the group members), and led by ***[Insert name of Legal entity 1]*** (the group leader), in accordance with the conditions of the procurement documents and the terms of the tender to which this Agreement/Power of attorney is attached.
- 2) If the contracting authority awards a contract resulting from this call for tenders (the contract) to the group on the basis of the tender to which this Agreement/Power of attorney is attached, all group members (including the group leader) shall be considered parties to the contract in accordance with the following conditions:
 - (a) All group members (including the group leader) shall be jointly and severally liable towards the contracting authority for the performance of the contract.
 - (b) All group members (including the group leader) shall comply with the terms and conditions of the contract and ensure the proper delivery of their respective share of the services and/or supplies subject to the contract.
- 3) Payments by the contracting authority related to the services and/or supplies subject to the contract shall be made through the bank account of the group leader indicated in the contract.
- 4) The group members grant to the group leader all the necessary powers to act on their behalf in the submission of the tender and the conclusion of the contract, including:
 - (a) The group leader shall submit the tender on its own behalf and on behalf of the other

group members and indicate in the "Contact Person" section in eSubmission the name and e-mail address of an individual as a single point of contact authorised to communicate officially with the contracting authority in connection with the submitted tender on behalf of all group members, including in connection with all relevant questions, clarification requests, notifications, etc., that may be received during the evaluation, award and until the contract signature.

- (b) The group leader shall sign any contractual documents — including the contract, [specific contracts] and amendments thereto — and shall warrant the submission of any invoices related to the performance of the contract on behalf of all group members.
- (c) The group leader shall act as a single contact point with the contracting authority in the delivery of the services and/or supplies subject to the contract. It shall coordinate the delivery of the services and/or supplies by the group to the contracting authority and shall see to a proper administration of the contract.

This Agreement/Power of attorney may be executed in counterparts, each of which shall be deemed to be an original, but all of which, taken together, shall constitute one and the same document.

Any modification to the present Agreement/Power of attorney shall be subject to the contracting authority's express approval. This Agreement/Power of attorney shall expire when all the contractual obligations of the group have ceased to exist. The parties cannot terminate it before that date without the contracting authority's consent.

Name
Function
Name of the legal entity

Name
Function
Name of the legal entity

signature[s]: _____

signature[s]: _____

Done at, on

Done at, on

Name
Function
Name of the legal entity

Name
Function
Name of the legal entity

signature[s]: _____

signature[s]: _____

Done at, on

Done at, on

Annex 4. List of identified subcontractors and proportion of subcontracting

Identification details	Roles/tasks during contract execution	Proportion of subcontracting (% of contract volume)
<i>[Full official name of the identified subcontractor, registered address, statutory registration number, VAT registration number]</i>		
<i>[Full official name of the identified subcontractor, registered address, statutory registration number, VAT registration number]</i>		
<i>[REPEAT AS MANY TIMES AS THE NUMBER OF IDENTIFIED SUBCONTRACTORS]</i>		
Other subcontractors that do not need to be identified under Section 2.4.2²⁶		
TOTAL % of subcontracting		0,00%

²⁶ For this category of subcontractors, please provide in a general manner their intended roles/tasks during contract execution, as well as the aggregated % of contract volume for all non-identified subcontractors.

Annex 5.1. Commitment letter by an identified subcontractor

[Letterhead, if any]

EUROPEAN COMMISSION

Call for tenders Ref. [reference number]

Attn:

[Insert date]

Commitment letter by identified subcontractor

I, the undersigned,

Name:

Function:

Legal entity:

Registered address:

VAT Number:

having the legal capacity required to act on behalf of [insert name of the entity], hereby confirm that the latter agrees to participate as subcontractor in the tender of [insert name of the tenderer] for the call for tenders [insert reference number] – [insert title of procedure] [Lot [insert lot number]].

In the event that the tender of the aforementioned tenderer is successful, [insert name of the subcontractor] commits itself to make available the resources necessary for performance of the contract as a subcontractor and to carry out the services that will be subcontracted to it in compliance with the terms of the contract. It further declares that it is not subject to conflicting interests, which may negatively affect the contract performance, and that it accepts the terms of the procurement documents for the above call for tenders, in particular the contractual provisions related to checks and audits.

Done at:

Name:

Position:

Signature:

Annex 5.2. Commitment letter by an entity on whose capacities is being relied

[Letterhead, if any]

EUROPEAN COMMISSION

Call for tenders Ref. [reference number]

Attn:

[Insert date]

Commitment letter by an entity on whose capacity is being relied

I, the undersigned,

Name:

Function:

Legal entity:

Registered address:

VAT Number:

having the legal capacity required to act on behalf of [insert name of the entity], hereby confirm that the latter **authorises the [insert name of the tenderer] to rely on its [financial and economic capacity] [technical and professional capacity] in order to meet the minimum levels** required for the call for tenders [insert reference number] – [insert title of procedure] [Lot [insert lot number]].

In the event that the tender of the aforementioned tenderer is successful, [insert name of the entity] commits itself to make available the resources necessary for performance of the contract. It further declares that it is not subject to conflicting interests which may negatively affect the contract performance, and that it accepts the terms of the procurement documents for the above call for tenders, in particular the contractual provisions related to checks and audits.

Done at:

Name:

Position:

Signature:

Annex 6. Financial tender form

Annex 6 is published as a separate document.

Annex 7. FIF

Annex 7 is published as a separate document.

Annex 8. LEF

Annex 8 is published as a separate document

